CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
JUNE 22, 2011
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, Florida 33054

1. CALL TO ORDER:

Mayor Myra L. Taylor called the meeting to order at 7:00 p.m. on Wednesday, June 22, 2011 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Dorothy Johnson, Commissioner Gail Miller, Commissioner Timothy Holmes and Mayor Myra L. Taylor. Also in attendance were: Interim City Manager Bryan Finnie, City Attorney Joseph S. Geller, and City Clerk Deborah S. Irby. Commissioner Tydus announced that she would be leaving the meeting at 9:00 p.m.

3. INVOCATION:

The Invocation was delivered by Mayor Myra L. Taylor.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Request to amend the agenda to include the following items:

16-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA DESIGNATING SIGNATORIES FOR ALL CITY ACCOUNTS ATTACHED HERETO AS EXHIBIT "A"; RESCINDING RESOLUTION NO. 10-8066 AND REVOKING ALL PRIOR AUTHORIZATIONS GRANTED; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to amend the agenda to include the above resolution as item 16-1.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

16-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA REGARDING COMPENSATION FOR THE INTERIM CITY MANAGER, BRYAN FINNIE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to amend the agenda to include the above resolution as item 16-2.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

Manager Finnie deferred agenda item 18-3. Commissioner Holmes deleted agenda item 19-5.

Vice Mayor Johnson pulled agenda item 19-2, 19-3 and Commissioner Holmes pulled agenda item 19-4 off of the Consent Agenda (these items would be discussed separately under Agenda Item 15 – Action Items).

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Mayor Taylor welcomed Bryan Finnie as Interim City Manager and requested that he provide a statement in his report relating to media coverage on the recent dog shooting in Opa-locka.

8. APPROVAL OF MINUTES:

Special Commission Meeting – 05/27/2011
Special Commission Meeting – 06/01/2011
Regular Commission Meeting – 06/08/2011

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to approve the minutes of the Special Commission Meeting of May 27, 2011, the Special Commission Meeting of June 01, 2011 and the Regular Commission Meeting of June 08, 2011.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

9. 17th CONGRESSIONAL DISTRICT OF FLORIDA REPORT:

Ed Haines of Congresswoman Frederica Wilson's office came forward and reported that the Congressional Black Caucus will be coming down to Miami for a job fair tentatively scheduled for July 23, 2011 at the James L. Knight Center. Additionally, he reported that there would be a follow-up to the Wellness Task Force Meeting at the City of Miami Gardens Commission Chambers on Thursday, June 30, 2011 at 10:00 a.m.

Mayor Taylor expressed her disappointment with the recent Job Fair held on the 2nd Floor at Town Center because the individuals who completed applications for employment did not get jobs.

Mr. Haines explained that the norm is to screen employers to make sure that they have jobs available and that they are coming to hire individuals. Unfortunately, sometimes employers come out taking applications, but they are not ready to hire. However, Congresswoman Wilson's office is working diligently to make sure the employers who participate in the Job Fair actually have jobs and that's why it is so important to have the Congressional Black Caucus backing because they have national companies with branches locally.

10. STATE SENATORS REPORT:

11. STATE REPRESENTATIVES REPORT:

12. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, County Commissioner Barbara Jordan's Office (District 1), came forward and reported that for the past couple of months they've been trying to get a partnership between the city and Miami-Dade County for employment training. They are in the process of preparing a Memorandum of Understanding.

Vice Mayor Johnson informed the Interim City Manager that the Commission passed a resolution for the inquiry into the Human Resources Department and the training mentioned by Mr. Gardner is a part of that coming from Miami-Dade County. Although the resolution was passed, the county is requiring a Memorandum of Understanding in order to get engaged.

Mayor Taylor requested that Mr. Gardner keep the Commission posted on the employment training.

13. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

14. PUBLIC PRESENTATION:

Chief Cheryl Cason, Opa-locka Police Department appeared before the City Commission and briefly introduced seven new police officers. She recognized several police officers who were instrumental in apprehending offenders involved in destroying and dismantling air conditioning units at Nathan B. Young Elementary School. Additionally, she reported that the city's VIN unit in connection with the multi agency task unit were involve in the discovery of marijuana grow houses in a warehouse on NW 19th Avenue and NW 135th Street and on Atlantic Avenue.

She assured the Commission and the residents of Opa-locka that the Opa-locka Police Department has their best interest at heart and they are working hard to enhance the quality of living for all.

Mr. Haines mentioned that the Capital Police implemented a program in all Congressional Offices called the Law Enforcement Coordinator and he serves as the law enforcement coordinator for Congresswoman Wilson. As the Law Enforcement Coordinator, he has to coordinate with the Police Chiefs in the entire district. While meeting with Chief Cason, he suggested that the city start an Officer of the Month program where a congressional certificate would be presented to an officer every month on behalf of Congresswoman Wilson.

1. **Charles Citrin**
   Citrin Financial
   re: city's health insurance

Charles Citrin, President of Citrin Financial and the city's contracted insurance agent appeared before the City Commission and stated that Coventry, the city's current health insurance provider, has provided preliminary numbers increasing the rate of insurance for basically the same plan. In addition, a survey is being sent out to all employees through the Human Resources Department. He said he would be working on putting together a plan that would make sense to the city's budgetary concerns as well as other concerns.

In terms of the survey going out to all employees, Vice Mayor Johnson suggested that the survey be provided in hard paper form, that the participant be allowed to remain anonymous and that the Commission also receive a copy of it.

2. Joseph L. Kelley
re: city concerns

Joseph L. Kelley of 485 Dunad Avenue, Opa-locka, Florida, came forward and expressed his concerns relating to the FY 2010-2011 budget amendments, agenda items 18-3 and 18-5, the number of special exception uses within the last few months that the city seems to be entering into and the challenges the city is facing with the pump stations.

Of concern to Vice Mayor Johnson was the recommendation to take $275,000.00 out of the $565,000.00 reserve. In 2002, the city didn't have any monies in the reserve and she is not in favor of using monies out of the reserve to balance the budget.

Manager Finnie explained that the scenario he would look at would be more like a savings account. The city has a savings account and each year they deposit a certain amount of money in that savings account. The allocation he is talking about is this year's deposit into the savings account which the city expects to put $565,000.00. Of that $565,000.00, the city is requesting that $275,000.00 be utilized to help balance the amended budget.

Vice Mayor Johnson didn't recall $565,000.00 going into the reserve each year.

Manager Finnie said he couldn't discuss each year; however, the year that he was City Manager, the city put $565,000.00 in the reserve.

Vice Mayor Johnson asked for further clarification in terms of the $565,000.00 reserve fund. If the city would put $565,000.00 in the reserve fund every year then the city would have millions of dollars.

Manager Finnie stated that the city has funds in the reserve and the $565,000.00 is the allocation that they are talking about for this particular year.

Vice Mayor Johnson stated that the reported number at every commission meeting is $565,000.00 and if $565,000.00 is put into the reserve on a yearly basis then there should be more than $565,000.00.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and explained that the $565,000.00 reported is the budgeted reserve for a particular year in question.

Vice Mayor Johnson stated that the balance shown in the Bank Atlantic bank statements only reflect $565,000.00. However, her request was for the city to provide her with the names of the banking institutions and the amount in each. She asked to be provided with the account in which the other reserve money is in and how much interest had been earned.

Manager Finnie directed Dr. Orji to provide Vice Mayor Johnson with documentation on the aggregate amount of money in all city accounts, how much is unrestricted, how much in restricted and what is the interest income of the aggregate accounts not later than Thursday, June 23, 2011.

Ezekiel Orji said that the city has two banks: Bank Atlantic and US Bank.

Vice Mayor Johnson requested to be shown where in the budget would she find the amount of money put into the reserve every year. She requested that the city provide monthly bank statements as a part of the financial report provided by the Finance Department.

3. Alvin Burke
re: welfare of the city

Alvin Burke of 2928 NW 132nd Street, Apt. 328, Opa-locka, Florida, appeared before the City Commission and voiced his concern relating to the construction completed on NW 27th Avenue.

Mayor Taylor stated to the City Manager that she already spoke about the unacceptable condition the contractors left NW 27th Avenue in. As the Mayor, she directed the City Manager and staff to take an aggressive approach as to what is happening in the city. She asked for an update on NW 27th Avenue.

Fritz Armand, Public Works Director for the City of Opa-locka came forward and stated that a site visit was conducted with the city's engineer, the contractor and FDOT so that the city could point out the expectations. The FDOT inspector was forceful with the contractor and the contractor promised that it would be straightened out by the following week.

If this matter is not resolved by the following week, Manager Finnie instructed the Public Works Director to contact the State and County to submit the contractor's information so that it is placed on the list of contractors who do live up to their intent.

Mr. Armand reassured the City Manager that a letter would be going out if the contractor does not meet the time schedule.

Manager Finnie instructed Mr. Armand to make sure a letter goes out to the contractor alerting them that this would be the step the city is prepared to take. He realized that there is an issue with the type of work done in the City of Opa-locka relative to other communities and he concurs that the city must be more aggressive.

Although this was not the first time this issue came up, Vice Mayor Johnson said she is glad to hear there is a different response at this time; however, she would hope that everything is in writing and documented. Not only did the contractor perform work a couple of months ago, but just this week they were doing some work and the roads were blocked. The city has an ordinance that anytime a contractor is doing work in the city, they must hire a city police officer and this is not being done. As the city is being aggressive and more attentive, she suggested that the city make sure those things are also done.

Manager Finnie said he would issue a memorandum to the police department the following day noting that if while the police officers are on patrol and work is being done on the streets and the city is not hired in that process, that's immediately to be brought to his attention in order to react accordingly.

14a. CITIZENS' FORUM:

1. Eldred Redmon of 2766 NW 131st Street, Opa-locka, Florida, appeared before the City Commission and suggested that the city get a Public Relations person to represent the Opa-locka Police Department during incidents. Secondly, he said he had breakfast with officials from Miami-Dade County, City of Miami and City of North Miami and the conversation topic was Opa-locka and how much money the employees are being paid. He said there are people who are not on the Commission, not a part of the Mayor's forum or associated with the employees in any shape, form or fashion, but yet are still making decisions.

He further asked, where is the city getting the money to pay the Interim City Manager when the city has assistant city managers who could serve as City Manager in the interim?

Manager Finnie stated that the Opa-locka Police Department does have a Public Information Officer. He provided an overview of the recent dog shooting incident in which a Public Information Officer did make comments to the media.

Mr. Redmon said he was referring to the restraining order situation when the two individuals involving the minor had to be split up pursuant to a restraining order which was the extent of the police department's involvement; something should have been said to that incident.

Mayor Taylor stated that the money to pay the Interim City Manager would come out of the general fund. Because the city is balancing the budget doesn't mean that they are broke.

Mr. Redmon suggested that the City Commission, in their choosing for City Manager, select someone that is not affiliated with Opa-locka.

2. Joan Reed of 2010 Service Road, Opa-locka, Florida, appeared before the City Commission and expressed her concerns relating to the road repairs on Service Road and the inconsistencies with the Opa-locka Express bus route schedule.

Mayor Taylor directed the City Manager to have staff explain how the bus schedule works.

3. Crystal Reed of 2010 Service Road, Opa-locka, Florida, came forward and informed the Commission of an incident that occurred while utilizing the services of the Opa-locka Express. She encouraged the city to notify the public of any changes to the bus route as soon as possible.

Vice Mayor Johnson said she too is concerned about the Opa-locka Express bus # 826 which she observed speeding through the residential areas and NW 27th Avenue.

4. Linda Parker of 955 Arabia Avenue, Opa-locka, Florida, appeared before the City Commission and thanked the city for taking care of the disaster on Sultan Avenue. Secondly, she requested that the city look into the road conditions on the streets going North and South along Historic City Hall towards Arabia Avenue.

5. David Norris of 260 Perviz Avenue, Apt. 18, Opa-locka, Florida, came forward to express his concern relating to the contractor picking up the garbage at 4:00 a.m., which had stopped, but has now started back again. He requested that the city look into this matter.

Vice Mayor Johnson agreed to personally call the representative for Opa-locka to address this problem.

15. ACTION ITEMS (items from consent agenda pull list):

19-2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ENTER INTO A CONTRACT WITH C & I CONSTRUCTION AND DESIGN, INC. (C&I) IN AN AMOUNT NOT TO EXCEED TEN THOUSAND EIGHT HUNDRED EIGHTY DOLLARS ($10,880.00) FOR MANHOLE INSPECTION, SMOKE & DYE TEST, AND VIDEO INSPECTION, AND ALSO AN ADDITIONAL AMOUNT PER THE ATTACHED RATE PROPOSAL TO REPAIR PUMP STATION 14 SERVICE AREA GRAVITY SEWER SYSTEM ON AN AS NEEDED BASIS, PAYABLE FROM ACCOUNT NUMBER 35-535630; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Miller to pass the above resolution.

Commissioner Holmes asked, did this item go through the procurement or bidding process?

Fritz Armand, Public Works Director for the City of Opa-locka came forward and stated that this item did go through the procurement process as required for items less than $25,000.00. In addition to that, he said that the backup documentation is provided as part of the agenda package.

Vice Mayor Johnson asked if the same company did the design?

Mr. Armand explained that there is no design involved with this particular item.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

19-3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO AMEND THE TERMS OF THE AGREEMENT WITH ATLAS PACKAGING, INC., FOR THE CONSTRUCTION OF PS 14 FOR AN ADDITIONAL ONE HUNDRED AND EIGHTY DAYS AND TO MODIFY THE PAYMENT TERMS, PAYABLE FROM ACCOUNT NUMBER 35-535630; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Miller, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson asked Attorney Geller if he sat down with Atlas Packaging, Inc. on the amendment to the agreement so that everything is crystal clear and the city can move forward.

To his knowledge, Attorney Geller stated that he did not speak to the attorney for Atlas Packaging, Inc.; however, he reviewed the contract that exists and the modification proposed and he believes the modification proposed is clear.

He continued to say that he finds the proposed amendment to the contract satisfactory.

Vice Mayor Johnson asked for the reason why the previous resolution reflected a different account number?

Faye Douglas, Budget Administrator for the City of Opa-locka came forward and stated that she didn't know what account number was on the previous resolution; but the account number as presented in the above resolution is for pump station construction and this is the correct account number presented.

Vice Mayor Johnson directed the City Manager to pull previous resolutions dealing with pump station 14 and provide her clarification in terms of the difference in account numbers. However, she would support this resolution based on what has been put on the record thus far.

Commissioner Holmes asked, is Atlas Packaging, Inc. in agreement with this amendment to the contract?

Attorney Geller stated that it is his understanding from staff that Atlas Packaging, Inc. requested this change.

Ken Gross, Consulting Engineer for Atlas Packaging, Inc. of Cherokee Consulting came forward and stated that Atlas Packaging, Inc. is in agreement with the verbiage in the modification of the original contract.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

Manager Finnie stated that the following item involves the Department of Juvenile Justice and because he wife is the assistant secretary of DJJ he recused himself from this item. He proceeded to exit the Commission Chambers, leaving Assistant City Manager David Chiverton to sit in on his behalf.

Attorney Geller stated for the record that the recusal would apply to execution of any documents that may come which would be executed at that time by an appropriate Assistant City Manager.

19-4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE CONTRACT AMENDMENT FOR THE DEPARTMENT OF JUVENILE JUSTICE, CONTRACT #X1690, IN THE AMOUNT OF FIVE HUNDRED TWELVE THOUSAND TWO HUNDRED SIXTY TWO DOLLARS AND NINETY CENTS

($512,262.90) FOR PERIOD JULY 1, 2011 TO JUNE 30, 2014; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson asked, are there any employees covered in this particular grant?

Assistant City Manager Chiverton replied, yes.

Vice Mayor Johnson asked, does the city have letter of agreements that state the period in which the grant ends that would not place them in a legal binding for future employment with the city?

Assistant City Manager Chiverton stated that at this time he doesn't believe the city has yet received those signatures.

Because this issue had come up before, Vice Mayor Johnson said everything should have been in place by now. She stated to the City Attorney that anytime any agreement is coming in front the city, it behooves him to make sure the safety of the Commission is in order. Prior to executing the contract, she requested the attachment of all employees who are a part of this grant to be included as a part of the agreement.

Mayor Taylor stated that she was surprised the city had not completed the documentation for grant employees because of the situation the city just went through.

Assistant City Manager Chiverton recalled the instructions from the Commission that all grants needed to have the appropriate documentation outlined and that the payment and salaries are only good through the grant period. He said he would make sure it gets done through the City Manager and Human Resources.

Mayor Taylor stated that the Commission must know who those employees are and they must sign documentation indicating that they understand.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Miller	Yes
Commissioner Tydus	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

Manager Finnie returned to the dais.

16. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA DESIGNATING SIGNATORIES FOR ALL CITY ACCOUNTS ATTACHED HERETO AS EXHIBIT "A"; RESCINDING RESOLUTION NO. 10-8066 AND REVOKING ALL PRIOR AUTHORIZATIONS GRANTED; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson stated that she wanted to make sure the above resolution included all banks including US Bank that the city does business with.

Attorney Geller pointed out that there is a listing attached as Exhibit A and it does list Bank Atlantic, US Bank and BB&T.

Commissioner Tydus asked, would Section 3 where it says "any and all banking institutions doing business with the city including but not limited to" include all banks?

Attorney Geller said it includes all of the banks and of course there's the attachment which is incorporated by reference.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

16-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA REGARDING COMPENSATION FOR THE INTERIM CITY MANAGER, BRYAN FINNIE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by M.T.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson noticed the resolution reflected the annual amount of the previous City Manager, but since it was not an annual position and it is a bi-weekly payroll, she asked, what is the bi-weekly amount?

Because this item involved the Interim City Manager, Manager Finnie exited the room leaving Assistant City Manager David Chiverton to sit in his place.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that he thought the amount was being calculated on a monthly basis instead of bi-weekly. He said that bi-weekly would be that of the employees and contracted services would be paid on a monthly basis.

Attorney Geller noted that the resolution would be amended to reflect the monthly compensation as oppose to yearly.

Vice Mayor Johnson said that the resolution should be amended and whatever the agreement is should be signed off by each member of the Commission with legal sufficiency from the City Attorney. Because she was made aware of employees that have not been approved by the Commission that have contracts and in order to avoid contracts other than the 3 appointed officials, she wanted a safety net for the Commission signature.

Mayor Taylor suggested that the resolution is amended to include that Mr. Finnie shall receive a form 1099 for his contracted services to the city.

Based on the discussion from the Commission, Attorney Geller proposed an amendment to Section 2 of the resolution to read as follows: That the appointed interim City Manager Bryan Finnie shall be paid bi-weekly (at the same time all City employees are paid), at a rate equal to $8,750.00 per month, and that he shall be paid as an independent contractor, with no deduction for taxes or any other matter, and no deferred compensation, and shall be responsible for paying self employment taxes on that income and shall receive a form 1099 therefore, and shall receive no benefits (including insurance or vacation) except that he shall receive a full-time use of a city vehicle, from the city's existing fleet, at City expense, and shall receive the use of a City cell phone, at City expense (except for any purely personal charges thereto).

Based on the discussion that this shall be the complete set of terms as Commissioner Tydus pointed out, he said all that would be needed, the vote is sufficient and as the Vice Mayor suggested there could be a letter where the interim City Manager agrees to accept the employment on the terms contained in the resolution and that means they don't have to change Section 3 of the resolution.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to amend the resolution as stated above by the City Attorney.

There being no further discussion, the motion on the amendment passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

There being no further discussion, the motion on the resolution as amended passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

Manager Finnie returned to the dais.

17. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

18. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 10-23, THE GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2010 AND ENDING SEPTEMBER 30, 2011, ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above ordinance on first reading.

Of concern to Vice Mayor Johnson was #31 of the 2010-2011 Budget Amendment General Fund Budget Reconciliation to reduce the FY 2010-2011 General Fund Reserve Allocation by $275,000.00.

Based on the current situation and timeline, Manager Finnie said this was the most viable alternative.

Vice Mayor Johnson recalled hearing that every time the Finance Director indicates the amount of money in the reserve at every meeting, it is actually the finance for this particular budget and there is a strong possibility that in addition to the $565,000.00, that the city has more money in the reserve, however, it is not mentioned at the meetings.

Manager Finnie said, one could state that, yes.

Vice Mayor Johnson asked, would it be accurate?

Manager Finnie replied, to my knowledge, yes.

Vice Mayor Johnson was not in support of reducing the reserve because in 2002 the city didn't have any money in reserve and over the years to come up with $565,000.00 to have to take out $275,000.00. The city has already committed that there wouldn't be any cuts in services, lay offs, and that the city is not in an emergency situation. She recommended that the City Manager go back to some of the money the city may have that may have not been reported and get the $275,000.00.

Manager Finnie informed Vice Mayor Johnson that he has agreed to provide her with a detailed memorandum relating to the aggregate amount in the reserve fund and that memo would address her concern. However, he has a 90 day window in which he must balance the budget so he can immediately begin to work on next year's budget.

Based on their recent conversation relating to scaling back on certain areas, Vice Mayor Johnson asked Manager Finnie if that was a part of the formula?

Manager Finnie said that would be part of it because they have to divide the savings by twelve so in the long run the savings are substantial, but this is for the next three months.

Vice Mayor Johnson said she was not willing to balance the budget not knowing how the city would get $275,000.00 to put back into the reserve because the reserve is for emergency purposes only. Being aware of the current economy status, she said she didn't want to set the city up where they can't run the city or they can't make payroll.

Manager Finnie said the city will continue to run and make the payroll. As he understood it, this was the first reading and prior to second reading he would provide the memorandum to address those issues.

Mayor Taylor directed the City Manager to provide the entire Commission with a copy of the memorandum.

Commissioner Holmes stated that the only way to balance the budget is to lay off the last individuals hired. He continued to express his disagreement with # 7 on the General Fund

Budget Reconciliation. He went on to say that the Commission should look at the reserve fund to avoid the 4% salary reduction for certain employees.

Commissioner Tydus stated that the first reading the Commission is considering is for the 1.4 Million Dollars and how they balance the budget is line by line that they still have time to do. She asked what is the timetable the City Manager is working with to balance the budget?

Faye Douglas, Budget Administrator for the City of Opa-locka said there is no deadline for budget amendments; the budget amendment can be done any time during the year as well as multiple times during the year.

Commissioner Tydus stated that the city cannot realistically address the upcoming fiscal year until this budget is balanced and that must be taken into consideration.

Ms. Douglas explained that the urgency of getting the budget amendment passed particularly the one dealing with salaries because every pay period delayed is reducing the savings.

Commissioner Tydus suggested that the Commission solidify the 1.4 Million Dollars and if necessary, they can meet with staff again as far as the distribution is concerned. She agreed with Vice Mayor Johnson in that $275,000.00 was not enough in the reserve. In looking at the new amendment presented, she provided her input on items # 1 and # 4.

Vice Mayor Johnson asked, did staff meet with each member of the Commission?

Manager Finnie replied, yes.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 10-24, THE PROPRIETARY AND SPECIAL REVENUE FUNDS BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2010 AND ENDING SEPTEMBER 30, 2011; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A", REFLECTING CHANGES (INCREASES) IN REVENUE SOURCES AS FOLLOWS: CAPITAL PROJECTS (FUND 320), ONE MILLION SEVEN HUNDRED NINE THOUSAND FOUR HUNDRED AND THIRTY DOLLARS ($1,709,430); SPECIAL LAW ENFORCEMENT (FUND 165), TWENTY FIVE THOUSAND DOLLARS ($25,000); CAPITAL IMPROVEMENT DEBT SERVICE (FUND 230), SIX MILLION NINE

HUNDRED THIRTY FIVE THOUSAND DOLLARS ($6,935,000); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above ordinance on first reading.

Commissioner Holmes suggested that the city look into coming up with some type of early retirement for those employees who would like to take an early retirement due to the recent retirement changes in the State of Florida.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

Commissioner Tydus left the meeting at 9:00 p.m.

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 86-8, SECTION 6.10 (B) THE LAND DEVELOPMENT CODE, TO INCLUDE PLACES OF RELIGIOUS ASSEMBLY AS A PERMITTED USE IN THE I-1 INDUSTRIAL ZONING DISTRICTS UPON APPROVAL BY THE CITY FOR A SPECIFIC LOCATION WITHIN SAID DISTRICTS AS A SPECIAL EXCEPTION; SITE PLAN REVIEW TO BE REQUIRED, AND AN ANNUAL LICENSE MUST BE OBTAINED TO CONTINUE OPERATIONS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was deferred at the request of the City Manager.

4. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 86-8, SECTION 6.11 (B) AND 6.12 (B) OF THE LAND DEVELOPMENT CODE PROVIDING FOR THE ADDITION OF WASTE TRANSFER STATION AS A SPECIAL EXCEPTION USE WITHIN THE I-2 AND I-3 ZONING DISTRICTS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, (Mayor Taylor relinquished the gavel to Vice Mayor Johnson) seconded by Mayor Taylor to pass the above ordinance on first reading.

Commissioner Miller asked for clarification on the above item.

Manager Finnie explained that the request is to be included on the list of eligible activities to move forward. Some of the city's land use policy and list of eligible activity must be upgraded with new technology. This new technology consists of separating plastics, computer parts and glass inside of a building accepted by DERM and referred to as a green building.

Gerald Lee of the City of Opa-locka Community Development Department came forward and stated that this business is asking to operate at the property between NW 147 Street and NW 149 Street east of NW 27th Avenue and west of NW 22nd Avenue in the I-2 zoning district. This is an enclosed building and there was a business and this company goes out and picks up the refuse that there are bringing in to sort and send out for recycling.

Because this ordinance is for a special exception, Vice Mayor Johnson said that it is only good for one year and no where in the correspondence does she see that. In the past, it has been her personal experience that the city doesn't go back and revisit special exceptions. Should this particular legislation past, she stated to the City Attorney that it is to be revisited a year from today.

Attorney Geller explained that the passage of this ordinance does not allow the business to begin; this just changes the ordinance so that the business can apply, but the business would still have to come in and make application. As a special exception, it would then come to the Commission and if it passed then it would be a year from when they are granted. This ordinance is to only allow the business to submit an application.

Because her experience still remained the same, Vice Mayor Johnson suggested that the legislation reflect that special exceptions must be revisited on a yearly basis.

Attorney Geller stated that the proper way to do what Vice Mayor Johnson is requesting is to add as an amendment to the legislation to simply state that any special exception granted pursuant to this ordinance shall be good for a period of one year and then reapplication for it must be sought.

Mayor Taylor asked, isn't this normal practice as a part of the Planning Council process that any special exception automatically has to renew after a year?

Attorney Geller stated that his understanding is that it is not automatic because there are different types of special exceptions. There are some businesses where you may want to authorize it once and not be forced to come back; but it is permissible to include it as the Vice Mayor has suggested.

Mayor Taylor didn't have a problem with Vice Mayor Johnson's recommendation; however, a special exception should not be blanketed for more than a year because everything should be brought back and that should be the normal rule.

It was moved by Vice Mayor Johnson, seconded by Mayor Taylor to amend the ordinance to reflect that any special exception granted pursuant to this ordinance shall be good for a period of one year and then reapplication must be sought.

There being no further discussion, the motion on the amendment passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Miller	Yes
Commissioner Tydus	Not present
Mayor Taylor	Yes
Vice Mayor Johnson	Yes

The motion on the ordinance as amended passed by a 4-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Mayor Taylor	Yes
Vice Mayor Johnson	Yes

Vice Mayor Johnson returned the gavel Mayor Taylor.

5. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH PETERSON HARLEY-DAVIDSON OF MIAMI, LLC, TO LEASE THREE (3) FLHP ROAD KING MOTORCYCLES, AT AN ANTICIPATED COST OF $475.00 EACH PER MONTH, WITH A TOTAL COST OF $34,200.00, FOR A TWENTY-FOUR MONTH PERIOD, TO BE PAID FROM ACCOUNT NUMBER 22-521649; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson stated that this particular item should be considered for grant writing.

Captain Gerardo De Los Rios of the Opa-locka Police Department came forward and explained that the current lease on the motorcycles had expired and must be renewed. In terms of the third motorcycle, the traffic unit will produce the revenue for that motorcycle.

Commissioner Holmes suggested that the Opa-locka Police Department try to get grant monies for the motorcycles in the future.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 86-8, THE LAND DEVELOPMENT CODE SECTION 6.10 (B) (19) TO INCLUDE RETAIL USE IN THE I-1 INDUSTRIAL ZONING DISTRICTS UPON APPROVAL BY THE CITY FOR A SPECIFIC LOCATION WITHIN SAID DISTRICTS AS A SPECIAL EXCEPTION; SITE PLAN REVIEW IS REQUIRED, AND AN ANNUAL LICENSE MUST BE OBTAINED TO CONTINUE OPERATIONS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on May 25, 2011). *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller.

Mayor Taylor opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE VACATION OF A PORTION OF DUVAL STREET, SPECIFICALLY THE AREA SOUTH OF NORTH WEST 151ST STREET AND THE AREA NORTH OF GRANT STREET; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE (first reading held on May 25, 2011). *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

Mayor Taylor opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above ordinance.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Johnson	Yes
Commissioner Miller	Yes
Commissioner Tydus	Not present
Commissioner Holmes	Yes
Mayor Taylor	Yes

C. RESOLUTION/PUBLIC HEARING:

19. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AUTHORIZE THE CITY MANAGER TO MAKE PUBLIC ITS INTENT AND TO SUBMIT AN APPLICATION FOR THE EDWARD BYRNE MEMORIAL JUSTICE ASSISTANCE GRANT (JAG) PROGRAM IN THE AMOUNT OF THIRTY-SIX THOUSAND NINETY-SEVEN DOLLARS ($36,097); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above consent agenda resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above resolution.

The motion passed by a 4-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Not present
Mayor Taylor	Yes

Commissioner Miller left the meeting.

A. CITY MANAGER'S REPORT:

Manager Finnie thanked the Commission and the residents of Opa-locka for giving him the opportunity to return to the city and provide his services. He said he had a lot of catching up to do in the next couple of weeks and he would focus on the amended budget as well as the operating budget as the city moves forward to the future.

With regards to the budget recommendations for the 4% decrease in employee salaries, Commissioner Holmes suggested that the city discuss this with the employee unions.

Because of the city's current financial situation, he also suggested that the city discontinue having events.

Vice Mayor Johnson directed the City Manager and City Attorney to get the CRA moving since the legislation was already adopted.

She went on to say that she didn't see any containers on the 4th floor at Town Center for recycling.

Although Captain De Los Rios was the spokesman for the Opa-locka Police Department, Mayor Taylor requested that the City Manager assign someone to serve as the spokesman for the city.

She continued by requesting that the city's trash center on Burlington Street is cleaned, landscaped and maintained on a regular basis.

She further stated that the job of the Commission is to legislate policies that would affect the community at large and she really shouldn't be bringing up concerns about cleaning debris when the city has Code Enforcement. If the city doesn't have a good Code Enforcement then they don't have a five star city. She stated to the City Manager that the city needs an aggressive Code Enforcement Department or Code Enforcement should be outsourced.

Manager Finnie announced that there is currently a film being made in town by African American entrepreneurs called the Magic City and those individuals are in the process of seeking a permit.

Mayor Taylor instructed the City Manager to make sure that film is a positive spin on the City of Opa-locka.

Manager Finnie said he would look at the script to make sure the scene protects the City of Opa-locka.

Vice Mayor Johnson welcomed the film makers to the city and suggested that the film is a good spin for the city. Also, she requested that the surrounding residents are aware of the filming.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and informed the Commission that included in their package is the required financial reports. He said that the city does have the required budgeted reserve amount of $565,000.00 in the bank.

Vice Mayor Johnson stated to Dr. Orji that he make sure the $275,000.00 mentioned earlier doesn't come out of that reserve.

20. OFFICIAL BOARD REPORTS:

21. CITY ATTORNEY'S REPORT:

Attorney Geller informed the Commission that he had provided a written report and added that pursuant to a request he received through Ms. Lawson, he spoke to the Interim City Manager regarding a plan for annexation which is moving forward and he would assist in that. He had a conversation with the Interim City Manager about the educational foundation being set up and how they would move forward on a 501c3.

As it relates to the debt collection, he said he would get with Vice Mayor Johnson because there are a couple of issues she expressed concerns about.

In terms of the CRA, he said that there is a memorandum from Mr. Carras and once the board (Commission) meets, it would select its officers and the officers would then hire staff.

Vice Mayor Johnson directed the City Attorney to look at the annexation issue and stay on top of it.

Having experience on annexation, Attorney Geller said he is prepared and he had the conversation with the City Manager, but it is ultimately a decision for the City Manager to bring to the Commission as to which parcels are being sought to annex. Also, there are studies that would need to be completed as to the revenue affect of it. However, on his part, whenever the city decides, he would be ready to move aggressively to do whatever is necessary from the legal side to get the annexation.

Vice Mayor Johnson suggested that a workshop is held on the annexation matter.

She directed the City Attorney to work closely with the City Manager as it relates to grant employees.

Mayor Taylor stated that the city has already put in motion the annexation and she just didn't have enough information to present it to the Commission whether they would go as far as NW 103rd Street down NW 27th Avenue or NW 95th Street to take in some schools.

Vice Mayor Johnson said that there are some deadlines and the city must fast forward the annexation process in order to be successful.

22. CITY CLERK'S REPORT:

Clerk Irby announced that the Miami-Dade County Mayoral Special Election will take place on June 28, 2011. She reported that she would get the word out to the residents of Opa-locka and will be doing a public service announcement on the special election.

Mayor Taylor encouraged everyone to get out and vote for Miami-Dade County Mayor on June 28, 2011.

23. MAYOR/COMMISSION REPORT:

Vice Mayor Johnson reported that she is pleased with the outcome of the construction training currently taking place.

She continued by saying she is excited to get the CRA going so that the city can have a downtown area.

Commissioner Holmes encouraged city employees to continue to keep the faith despite the recommendations being made due to the city's financial situation.

Although the city had to make adjustments, Mayor Taylor stated that no one in the city had to be laid off.

Mayor Taylor directed the City Clerk to post a notice for a workshop on July 13, 2011 at 6:00 p.m. re: presentation by Roderick Harvey, Harvey, Covington & Thomas, LLP; and CRA at 6:30 p.m.

Clerk Irby asked if there was advertisement required for the CRA?

Attorney Geller replied that there is.

Clerk Irby requested that she be provided with the ad by June 23, 2011 to meet the advertising requirements and deadline.

24. OFFICIAL BOARD APPOINTMENTS:

Mayor Taylor expressed the importance and need to have three alternate members on the Planning Council to address the issue in terms of the lack of a quorum.

25. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to adjourn the meeting at 9:45 a.m.

MAYOR

ATTEST:

CITY CLERK